

SENATE BILL 1241

By Jackson

AN ACT to amend Tennessee Code Annotated, Title 36;
Title 37 and Title 39, relative to child abuse.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 37-1-102(b)(1), is amended by adding the following as a new subdivision:

(C) A person under eighteen (18) years of age witnesses the abuse of another child in the person's immediate family or household or domestic abuse, as defined in § 36-3-601, of a member of the person's immediate family or household;

SECTION 2. Tennessee Code Annotated, Title 37, Chapter 2, Part 4, is amended by adding the following as a new section:

Notwithstanding another law to the contrary, if a child has been removed from the custody of a parent or legal guardian due to a finding of abuse, as defined in § 37-1-102, and placed in foster care with the department or in the care of an agency as provided in § 37-2-403, then reunification with the parent must not occur unless the parent has complied with the parent's statement of responsibilities in the permanency plan and the child has received mental health counseling.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.